

Unnati Saraf

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BAR Council of UP- Enrollment No.-UP17605/21



CAREER OBJECTIVE: Willing to pursue a challenging career which gives me opportunities to constantly learn, grow as well as enhance my knowledge and professional skills and add value to the organization I work for.

EDUCATIONAL QUALIFICATIONS

Qualification	College/ School	Year of Passing
BA LLB (Specialisation in Criminal Law)	UPES, Dehradun	2021
Intermediate	New Public School, Lucknow	2016
High School	New Public School, Lucknow	2014

WORK EXPERIENCE

Omnistarr pvt. Ltd. (Dec 2024 - current)

Designation - AFC operations Manager, legal and compliance

- Drafting and reviewing employment contracts for nurses, doctors, or allied healthcare professionals.
- Ensuring adherence to state and federal labour laws (e.g., Fair Labour Standards Act, OSHA).
- Handling workplace disputes, harassment claims, or wrongful termination issues.
- Ensuring all healthcare staff have valid and current licenses and certifications (e.g., RN, LPN, NP).
- Legal review of credential verification procedures to avoid malpractice or liability claims.

Contract Management:

Drafting, negotiating, and reviewing contracts with:
Hospitals, clinics, and healthcare facilities (clients)
Vendors and third-party service providers
Ensuring contracts cover important clauses like:
Indemnification
Liability and insurance
Termination

HireX Corp LLP, (Jan 2023-

Designation- Legal and Compliance Associate

- Provided effective compliance solutions to a rapidly growing IT services company, maintaining Indian data protection law compliance, e.g., the Information Technology Act, 2000 and Personal Data Protection Bill (PDPB).
- Conducted meticulous document review of vendor contracts, data processing contracts, and internal guidelines to comply with local and international data protection legislation (e.g., GDPR).
- Aided substantially in contract negotiation by preparing and redlining data protection, service level, and confidentiality clauses per Indian privacy laws to avoid legal exposure.
- Maintained and updated compliance reports daily, tracking the status of contract reviews, vendor ratings, and internal audits to ensure constant regulatory compliance.
- Established accurate organisation and preservation of electronic and hard copy records to promote immediate access by internal audits as well as regulatory checks by the likes of MeitY and the forthcoming Data Protection Authority.
- At Hirex Corp LLP, I was tasked with supporting a rapidly expanding Indian IT services company looking to scale its operations while adhering to complex local and international regulatory standards. The company was especially focused on compliance with Indian data protection laws, including the Information Technology Act, 2000, and the Personal Data Protection Bill, which was under consideration at the time.
- My primary responsibility involved providing compliance solutions to ensure that the company's data processing activities complied with India's data protection regulations. I worked closely with the company's IT and HR teams to identify gaps in data security and privacy practices.
- The document review work included analysing and updating customer and vendor contracts, ensuring that clauses related to data processing, data retention, and data security were up-to-date and in compliance with both local and international standards (such as GDPR). You also reviewed internal policies, such as employee data handling protocols, to ensure compliance with the Indian Privacy Code and other relevant laws.
- During the contract negotiation process, i played a key role in drafting and redlining contracts, especially those involving third-party vendors. I focused on negotiating data protection, service levels, and confidentiality terms, ensuring that the company's interests were fully protected and compliant with current regulatory standards.
- To track the company's compliance status, I use to maintain a daily compliance report, including updates on contract reviews, vendor assessments, and internal compliance audits. This helped the company stay on top of its obligations and take immediate corrective actions when necessary.
- Additionally, you ensured that all records—both hard copy and digital—were properly maintained, ensuring easy access during audits or inspections by regulatory authorities such as the Ministry of Electronics and Information Technology (MeitY) or the Data Protection Authority (once established).

Outcome:

My proactive approach helped the company avoid potential legal risks related to data privacy and contract violations. By ensuring that all agreements and policies complied with evolving Indian regulations, the company passed several internal and external audits with minimal findings.

MCO Legals. New Delhi (Feb. 2021 – Sep. 2021)

Designation – Legal Trainee Associate

- Assisted in a civil contract dispute case by organising key legal documents, including the original service agreement, invoices for payment, and email correspondence, into a chronological evidence timeline for use in court.
- Investigating relevant sections of the Indian Contract Act, 1872, and analysing relevant case laws to support the client's case of breach of contract and right of compensation.
- Prepared draft summaries and client affidavits under the supervision of a senior attorney, making sure all documents adhered to local court filing processes.
- Attended client meetings to review case progress and helped prepare responses to legal notices, thereby the successful negotiation and out-of-court settlement.
- Maintained an electronic filing system for all legal documents, enhancing accessibility and reducing documentation retrieval time for lawyers during hearings.

Office of Adv. Varsha Rani Srivastava (Feb. 2022 – Dec 2022)

Designation – Legal Associate

- Collected and examined critical evidence, including mobile location data, call records, and third-party witness testimonies to support the defence in a theft case under IPC Section 379.
- Drafted bail applications, affidavits, and counter-responses to prosecution arguments, ensuring accuracy and alignment with Crpc requirements.
- Reviewed and proofread FIRs, charge sheets, and legal notices to identify procedural lapses and contradictions in witness accounts.
- Conducted in-depth legal research on similar case precedents, evidentiary rules under the Indian Evidence Act, and procedural protections under the Crpc.
- Assisted in client interviews and trial preparation, contributing to successful bail approval and eventual dismissal of charges due to insufficient corroborative evidence.

I was a part of defence team in a criminal case involving a wrongful accusation of theft under Section 379 of the IPC. The client was accused based on circumstantial evidence and a flawed witness statement.

I played a keen role in investigating the facts, drafting legal documents, and conducting legal research that ultimately helped in the client's acquittal.

INTERNSHIPS

Internship	Supervising Person	Date	Area of Learning
Meharia and Company, MCO Legal, Delhi	Advocate Tannishtha Singh	10th February 2021 – 13th June 2021	Breach of contract cases, drafting legal notices, contract law principles.
District Court, Lucknow	Advocate Manoj Tiware	1st June 2017 – 20th June 2017	Civil case laws
Armed Forces Tribunal, Regional Bench, Lucknow	Advocate Anand Kumar Singh	3rd July 2017 – 31st July 2017	Drafting case briefs. Legal research on service laws, Observing tribunal proceedings
LEXACORP LEGAL, Advocates and Solicitors, New Delhi	Advocate Arpita Yadav	21st May 2018 – 20th June 2018	legal research, drafting,
High Court, Lucknow Bench	Advocate Pulak Pathak	18th December 2016 – 7th January 2017	legal drafting, case brief preparation
High Court, Lucknow Bench	Advocate Mahendra Singh	1st June 2019 – 25th June 2019	drafting
High Court, Lucknow Bench	Advocate Neel Kamal Mishra	1st January 2019 – 25th January 2019	legal research , court visits , case brief preparation

RESEARCH PAPER PRESENTATIONS

Presented a Research paper on Judicial Response on the Protection of Environment at Chandigarh University.

- Definition and importance of environmental protection
- Role of the judiciary in upholding environmental laws
- Constitutional Provisions Related to the Environment in India

- Evolution of Environmental Jurisprudence in India
- Landmark Judicial Pronouncements

Case laws

- MC Mehta v. Union of India (Oleum Gas Leak, Ganga Pollution, Vehicular Pollution)
- Rural Litigation and Entitlement Kendra v. State of UP (Dehradun limestone mining case)
- Vellore Citizens' Welfare Forum v. Union of India (Sustainable Development and Precautionary Principle)
- Subhash Kumar v. State of Bihar (Right to clean water as part of Article 21)
- T.N. Godavarman Thirumulpad cases (Forest conservation)
- Indian Council for Enviro-Legal Action v. Union of India

Principles Evolved by the Judiciary

- Polluter Pays Principle
- Precautionary Principle

Role of Public Interest Litigation (PIL)

- Tool for environmental activism
- Access to justice for marginalized communities
- Expanding scope of judicial review
- Summary of judiciary's contribution

SOCIAL WORK

- Actively participated in teaching underprivileged children in the village of Kandoli.
- Covid relief task force volunteer under BSS Non profit organisation.

ADDITIONAL CERTIFICATIONS & ACHIEVEMENTS

- Certification in Neuro Linguistic Programming Language
- Certification in Practices of Intellectual Property Rights from UDEMY
- Scored 98% marks and performed excellent in Criminal Psychology at UPES

SEMINAR EXPERIENCE

- Core team member of 7th Dr. Paras Diwan Memorial International Energy Law Moot Court Competition 2017 from 7th to 9th April 2017
- Bagged the second position in 3rd UPES National Trial Advocacy Competition
- Attended seminar on 'JUVENILE JUSTICE SYSTEM TRENDS AND CHALLENGES IN GLOBALIZING WORLD

Topics covered

- Historical evolution of juvenile justice
- Purpose of a separate justice system for juveniles
- Increased use of alternative dispute resolution (ADR) and diversion programs
- Digital and cybercrimes involving juveniles
- Growing focus on mental health, trauma, and rehabilitation

PERSONAL INFORMATION

- **Address:** 161/5-6, Krishna Lok colony Phase 1, Kanpur Road, Lucknow 226401
- **Date of birth:** 26th October, 1998
- **Languages:** Hindi, English, Marathi & French
- **Hobbies:** Dancing, Blogging, Painting, Mandala, travelling.